

Court No. - 37

Case :- WRIT - C No. - 63527 of 2013

Petitioner :- Vijay Shankar Tiwari

Respondent :- State Of U.P. Thru Secy. And 4 Others

Counsel for Petitioner :- B. Lal

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Vipin Sinha,J.

Sri Mahboob Ahmad, learned counsel for respondent nos. 4 and 5 prays for and is allowed time to obtain instructions.

Put up as fresh on 27.11.2013.

Order Date :- 21.11.2013

Kuldeep/

Court No. - 37

Case :- WRIT - C No. - 63527 of 2013

Petitioner :- Vijay Shankar Tiwari

Respondent :- State Of U.P. Thru Secy. And 4 Others

Counsel for Petitioner :- B. Lal

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Mahendra Dayal,J.

Put up on 2.12.2013 as fresh.

Order Date :- 27.11.2013

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Court No. - 32

Case :- WRIT - C No. - 63527 of 2013

Petitioner :- Vijay Shankar Tiwari

Respondent :- State Of U.P. Thru Secy. And 4 Others

Counsel for Petitioner :- B. Lal

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Sunil Ambwani,J.

Hon'ble Surya Prakash Kesarwani,J.

We have heard Sri B.Lal for the petitioner. Learned standing counsel appears for the State respondents. Sri Mahboob Ahmad appears for State respondents.

The petitioner is aggrieved by recovery of the electricity dues in a theft case by citation dated 19.08.2013, after alleged provisional and final assessment of electricity in accordance with provisions of U.P. Electricity Supply Code 2005.

The writ petition has been filed challenging the demand on the ground that the petitioner has not committed any theft. The provisional assessment was not served and that final assessment was not made after inviting and deciding objections. The recovery of dues is as such against the provisions of the Electrify Act, and is consequently illegal.

A counter affidavit of Sri Sailendra Kumar, Executive Engineer, Electricity Urban Distribution Division, Naini, District Allahabad has been filed stating therein that he has examined the matter, and has issued a letter dated 21.11.2013, by which final recovery has been withdrawn in view of order dated 30.06.2013.

The respondents have admitted that provisional assessment was not made before making final assessment and recovery.

The writ petition is **allowed** to the extent that the respondents shall not recover the amount of Rs.55,078/- vide recovery citation dated 19.08.2013. Since recovery certificate has been directed to be withdrawn, it will open to the respondents to make provisional assessment, and after serving the same, invite objections and make final assessment. The petitioner may file an appeal against the final assessment order, and pursue the same in accordance with law.

Order Date :- 2.12.2013

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